

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.**

4. M-CV-0096584 PALANIAPPAN, RAMU v. JOHN, GARY

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Defendant's Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff's verified complaint on the grounds the court lacks subject matter jurisdiction, the complaint is uncertain, and does not allege facts sufficient to state an unlawful detainer cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

An unlawful detainer based on the failure to pay rent has several elements: (1) plaintiff owns the property; (2) plaintiff rented the property to defendant; (3) pursuant to a lease/rental agreement, defendant was required to pay rent in a specified amount to plaintiff; (4) plaintiff properly gave defendant three days written notice to pay rent or quit; (5) when the three day notice was provided, the amount stated therein was due; (6) defendant did not pay the amount stated in the three day notice within three days after service of the notice; and (7) defendant is still occupying the property. (Code Civ. Proc. § 1161, subd. (2).)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state an unlawful detainer cause of action because the complaint contends the parties entered into a written lease agreement on September 15, 2026, which is a future date that has yet to occur. Therefore, the complaint does not sufficiently allege a lease/rental agreement between the parties.

Accordingly, defendant's demurrer is sustained with leave to amend. Plaintiff shall file and serve an amended complaint on or before 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)